



**Order under Section 9(2)
Residential Tenancies Act, 2006**

Citation: Thompson v Sandhu, 2025 ONLTB 96277

Date: 2025-12-18

File Number: LTB-T-099269-24

In the matter of: 335, 285 Crydermans Sideroad
Georgina Ontario L0E1R0

Between: Lavardo Thompson Tenants
Nicole Thompson

And

Lyndhurst Park Inc. Landlord

Lavardo Thompson and Nicole Thompson (the 'Tenants') applied for an order to determine whether the *Residential Tenancies Act, 2006* (the 'Act') applies.

This application was heard by videoconference on December 11, 2025.

The Landlord's Agent Amitt Sandhu and the Tenant Lavardo Thompson attended the hearing.

Determinations:

1. The Landlord confirmed that the named Landlord should be "Lyndhurst Park Inc." and not the Agent Amitt Sandhu.
2. On consent of the parties, the named Landlord has been amended as set out above.
3. Based on the evidence before me, I am satisfied on a balance of probabilities that the Act does apply to the rental unit or residential complex.
4. The Tenant testified. They are a licensed real estate agent. In addition to this unit, they own or have owned at least 4 other units in this park.
5. They stated that they purchased this unit in 2022 from an individual that was a full-time maintenance manager at the park. At that time the owner was using the unit year-round, and they anticipated that they would also be permitted to use the unit year-round.

6. They stated that they have paid the park fees for year-round occupation.
7. They stated they had occupied the unit themselves for a time and have since been renting the unit out to tenants.
8. They stated that the park advertises year-round living as part of their sales of park model trailers.
9. The Landlord's Agent testified. They testified that they use a standardized "License of Occupation" agreement that sets out the legal duration of the stay and that fees for extended stays for year-round at added separately.
10. On cross-examination, they confirmed that this unit has been occupied year-round since 2023. They confirmed that the park facilities (water, sewer and utilities) are provided yearround.
11. They stated that the extended stays are granted on a case-by-case basis and may not always be approved.
12. They stated that the park does have year-round lots, and that for those the Occupation agreement is for 12 months.
13. They stated that since purchasing this park, they have offered occupation agreements on the same terms as the previous owners. They were unsure if the local municipality would permit them to offer this unit a 12-month occupation agreement.
14. The Tenant submitted that the LTB has found that other units in the park fall under the Act. See *Pearce v. Sandu*, 2024 ONLTB 58824 issued on January 24, 2025.
15. The Landlord submitted that just because the unit has been occupied year round should not mean the Act applies; the occupation agreement states the lengthy of occupancy.
16. Section 5 of the Act provides that the Act would not apply to seasonal or temporary occupation in a campground or trailer park.

5 This Act does not apply with respect to,

(a) living accommodation intended to be provided to the travelling or vacationing public or occupied for a seasonal or temporary period in a hotel, motel or motor hotel, resort, lodge, tourist camp, cottage or cabin establishment, inn, campground, trailer park, tourist home, bed and breakfast vacation establishment or vacation home;

17. Section 3 of the Act provides that the Act applies despite any other agreement.

Application of Act

3 (1) This Act, except Part V.1, applies with respect to rental units in residential complexes, despite any other Act and despite any agreement or waiver to the contrary.

18. Section 4 of the Act provides that any provision in an agreement that is inconsistent with the Act is void.

Provisions conflicting with Act void

4 (1) Subject to subsection 12.1 (11) and section 194, a provision in a tenancy agreement that is inconsistent with this Act or the regulations is void.

19. This means that any provisions in the occupancy agreement that is inconsistent with the provisions in the Act are void. As such the Landlord's argument that the occupancy agreement provides that the occupation period overrides the Act is incorrect and I have not given it any consideration.
20. The parties were advised that other decisions of the Board were not binding on me. As such I have not given weight to the prior decision in relation to a different unit at the park.
21. Section 202 of the Act requires the Board to ascertain the real substance of the activities relating the rental unit.

Findings of Board

202 (1) In making findings on an application, the Board shall ascertain the real substance of all transactions and activities relating to a residential complex or a rental unit and the good faith of the participants and in doing so,

- (a) may disregard the outward form of a transaction or the separate corporate existence of participants; and
- (b) may have regard to the pattern of activities relating to the residential complex or the rental unit.

22. The Ontario Court of Appeal considered the applicability of section 5 (a) of the Act in *Matthews v. Algoma Timberlakes Corporation*, 2010 ONCA 468 (CanLII). In that case, the Court of Appeal found that the Act applied to land leases where cottages had been built and used year-round as second homes.
23. In the present case, the Landlord acknowledges that the park has year-round sites. They also acknowledged that for this particular unit that it has been occupied year-round.

24. It was uncontested that the Tenant in this case owns other units in this park, as such it is likely with the knowledge and consent of the Landlord that those units were being rented out contrary to what the Rules and Regulations of the park state.
25. I would also note that at paragraph 15 to the Rules and Regulations, that an occupant must notify the park when leaving the park for a period of more than one week.
26. These imply that renting of units has been permitted, and that they are occupied on a full time basis. In other words occupation is not intended for the vacationing or travelling public.
27. It was uncontested that in the present case that the unit is occupied year-round, therefore I find that the Act applies, and any provisions in the License to Occupy that are contrary to the Act to be void and of no force or effect.

It is ordered that:

1. The *Residential Tenancies Act, 2006* applies.

December 18, 2025

Date Issued

Robert Patchett

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.